

M. Ramanjaneyulu vs Maladulla Lakshmi on 27 November, 2019

Author: J.Uma Devi

Bench: J K Maheshwari, G. Shyam Prasad, J.Uma Devi

THE HON'BLE SRI JUSTICE M.SEETHARAMA MURTI

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THE HON'BLE MS JUSTICE J.UMA DEVI

CIVIL MISCELLANEOUS APPEAL No.686 of 2012

JUDGMENT :

(per Hon'ble Ms Justice J.Uma Devi) The petitioner, in HMOP No.229 of 2010 on the file of the Principal Senior Civil Judge, Guntur, whose application made under Section 13(1)(ia) & (ib) for dissolution of his marriage with the respondent-D.Lakshmi has been disallowed, vide judgment dated 23.04.2012, has come before this court by preferring the present appeal.

2. The parties hereinafter are referred to as they are arrayed in HMOP for the sake of convenience.

3. The facts to the limited extent necessary for disposal of the appeal are briefly stated as under:

4. The petitioner was working as an Assistant Executive Engineer, Guru Raghavendra Project Division-I, Mantralayam at the time of his marriage with the respondent Smt.D.Lakshmi. Soon after the marriage, the respondent joined him and led happy marital life with him for few months and later disputes arose between her and the petitioner. As per the allegations made by the petitioner, the respondent was adamant and used to pick up quarrels with him and his mother on some pretext or the other and started insisting him to get him transferred from Yemmiganur to Guntur or a place nearer to her native place and that she was not interested to live with him, due to which, he suffered physically and mentally. It is further stated that the respondent was frequently going to her parents' house without informing him and openly stated that she is 2 MSRM,J&JUD,J CMA.686 of 2012 not interested in leading marital life with him. When she was questioned by the petitioner, she replied that she intends to stay with her parents and that she used to tell him openly that she does not like the marriage with him. Within short period of stay with the respondent, the petitioner could realise that the respondent was suffering from mental disorder. It is his contention that the respondent all of a sudden used to cry in loud voice and was becoming aggressive without any cause. Having understood about her mental disorder, the petitioner took her to a famous doctor to provide treatment to her.

5. According to the petitioner, his mother left his house and reached Kodumuru having unable to bear the humiliation caused to her by the respondent, who used to pick up quarrels with her for no reason. The petitioner, his mother and sister were implicated by her in a dowry harassment case. During her short period of stay with the petitioner, she did not cooperate with him and failed to discharge the marital obligations. The petitioner and his mother bore the harassment caused to

them by the respondent with a fond hope that she will change her attitude on one day or the other. All the efforts made by him to change her attitude went in vain. The respondent left the matrimonial home 5½ years prior to the filing of the divorce petition by him. Filing of dowry harassment case against him, his mother and sister leaving the matrimonial home without any justifiable reason themselves were enough to hold that the respondent's intention is to harass them.

6. The respondent/wife filed counter before the court below denying the contentions of the petitioner.

7. The court below on appreciation of evidence found that no substantial grounds were made out to grant divorce and accordingly 3 MSRM,J&JUD,J CMA.686 of 2012 dismissed the case. Feeling aggrieved thereof, the unsuccessful petitioner approached this court seeking to set aside the judgment passed by the court below.

8. The present civil miscellaneous appeal was filed in the year 2012 against the judgment in HMOP.No.229 of 2010, dated 23.04.2012. The respondent/wife though served with notice, she did not choose to enter appearance. On the ground of cruelty and voluntary desertion of the respondent, the petitioner sought the decree of divorce and that the court below declined to grant divorce. Petitioner's contention is that the respondent lived with him hardly for two months, during which time, himself and his mother were harassed by her and that his mother who could not tolerate the harassment of the respondent left his house and reached their native village Kodumuru. The respondent used to pick up quarrels with him and his mother on one pretext or the other during her short period of stay in the matrimonial home. Filing of the criminal complaint against the petitioner, his mother and his married sister after presentation of the divorce petition itself would indicate that she had the intention of harassing the petitioner and his family members by keeping them behind the bars.

9. The petitioner is a Government employee. The respondent is also an educated woman. Her marriage with the petitioner is performed as per Hindu rites and customs in Vasavi Kalyana Mandapam, Weavers Colony, Yemmiganur of Kurnool District on 26.05.2004.

10. In the year 2004 the respondent lodged a complaint with the police of Yemmiganur and that the police referred the couple for counselling. The couple lived together for few days after they were counselled. Later the respondent was taken to her parents' house, after 4 MSRM,J&JUD,J CMA.686 of 2012 that she did not return to her matrimonial home on the pretext that she is not feeling well. Petitioner's version is that all his efforts made to maintain harmonious marital relationship are failed as the respondent was not interested in leading marital life with him.

11. The respondent who seems to have asserted before the trial court that still she has got the hopes of revival of her marital relationship with the petitioner, and intends to lead marital life with the petitioner, has not issued any notice calling upon him to take her back with him to lead matrimonial life. No evidence is let in by her in so far as the efforts, if any made by her to get the marital relationship revived by conducting mediation through elders.

12. She lodged a complaint as against the petitioner, his mother and sister in the year 2010 alleging that she was harassed by them with a demand to get dowry from her parents. This apparently was done after filing of divorce petition, and it was done long time after she left her matrimonial home.

13. The criminal court, which took cognizance of the case under Section 498-A IPC as against the petitioner and others, after conducting full-fledged trial, observed that the allegation of harassment has not been proved by the respondent, accordingly, acquitted the petitioner and others. The judgment of the criminal court became final and there it was observed that the allegations as to the harassment are vague and, such allegations are bereft of any details, and it has not been proved by the prosecution with cogent evidence that the petitioner and others harassed PW 1 (respondent herein) physically and mentally with a demand to get additional dowry etc. 5 MSRM,J&JUD,J CMA.686 of 2012

14. Filing of criminal complaint by the respondent long time after she left her matrimonial home making the allegations of dowry harassment as against the petitioner, his mother and sister itself shows that her intention is to harass them.

15. Evidently, the criminal complaint as against the petitioner, his mother and sister was filed by the respondent on 22.02.2010 i.e., two months after filing of the divorce petition. Pursuant to the lodging of criminal complaint by the respondent, the petitioner was apprehended on 02.03.2010 and released on bail on 10.03.2010. The petitioner and other family members were forced to face trial due to lodging of criminal complaint as against them with the allegation of dowry harassment. The criminal case filed against the petitioner and his family members ended in acquittal recording a specific finding regarding the falsity of allegations made in the criminal complaint and that no appeal was filed as against it and the judgment in criminal case became final.

16. The respondent filed a case for maintenance as against the petitioner, and maintenance of Rs.3,000/- per month awarded to her, later the same was enhanced to Rs.5,000/-.

17. The above mentioned facts which are born by the record themselves indicate that the respondent does not want to discharge her marital obligation and wants to stay away from the petitioner. It has been observed somewhere in the judgment of the criminal court that the respondent has been living away from the petitioner from the year 2005- 06 and this fact is apparent from the evidence on record.

18. The respondent who has been staying away from the petitioner from 2005-06 onwards without making any efforts for reunion cannot expect for revival of her marital relationship. From the aforementioned 6 MSRM,J&JUD,J CMA.686 of 2012 facts, it can safely be concluded that it is the respondent who severed the matrimonial relationship with the petitioner by living away from the petitioner from 2005-06 onwards.

19. Even after service of notices in the appeal, the respondent not appeared before the court and no steps were taken by her to contest the case. Not responding to the notices issued by the appellant can also be a circumstance through which it can be inferred that she has no interest to lead marital

life with him. Here is the case where substantial material is found in the case record as regard to living of the couple away from each other continuously for more than half a decade. From this, it can fairly be construed that marital bond between the couple had broken down.

20. Though evidence is placed on record in so far as severing of marital relationship by the respondent by keeping herself away from the petitioner from 2005-06 onwards, the court below without taking such evidence into consideration seems to disallowed application filed for decree for divorce.

21. Filing of dowry harassment case implicating all the family members of the petitioner and a maintenance case against him after initiation of proceedings of divorce by him is an afterthought, and it is done knowingly and intentionally by the respondent to embarrass the petitioner and his family members, such conduct of her constitutes cruelty as postulated in Section 13(1)(ia) of Hindu Marriage Act.

22. We find unequivocally that filing of a complaint by the respondent attributing dowry harassment against the petitioner and others knowing fully well about the consequences of it, amounts to matrimonial cruelty. In these circumstances, we find that the appeal is well founded and deserves to be allowed.

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23. We accordingly order for dissolution of the marriage of the parties under Section 13(1)(ia) of Hindu Marriage Act. The parties shall bear their respective costs.

Pending miscellaneous petitions, if any, shall stand closed in consequence.

M.SEETHARAMA MURTI,J _____ J.UMA
DEVI,J Date: 27.11.2019 Dsr